

Sixth, item 14.b.(1) is not marked nor filled out when item 12. and item 16.b. Indicates medical expenses of \$4,384.68 need to be paid.

Eighth, attachment 18b(2), that lists the name, branch, and address the account is to be deposited into is missing from the Petition. This may be due to an error attempting to attach documents to the petition that was filed as the petition indicates 11 pages were attached but the court has received no documents attached to the petition. The only documents the court received were the exhibits attached to the separately filed declaration.

Ninth, the Petition is not verified and is missing Petitioner's signature.

Finally, to the extent documents identify Petitioner as guardian ad litem, no order granting guardian ad litem status is on the court's docket.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 7-20-26 .
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Neal Jackson v. All American Auto Inc.**
Superior Court Case No. 25CECG03552

Hearing Date: July 22, 2026 (Dept. 502)

Motion: Plaintiff Neal Jackson's Motion to Compel Further Responses to Requests for Production of Documents, Set One

**If oral argument is timely requested, it will be entertained on
Thursday, July 23, 2026, at 3:30 p.m. in Department 502**

Tentative Ruling:

Plaintiff Neal Jackson's Motion to Compel Further Responses to Requests for Production of Documents, Set One, is moot.

Plaintiff's request for monetary sanctions is granted in the amount of \$1,022.50, to be paid by American Auto and its counsel to plaintiff's counsel at Sierra Litigation. Sanctions shall be paid within 30 days of the notice of entry of this order.

Explanation:

Plaintiff, Neal Jackson ("Jackson" or "plaintiff") makes this motion to compel further responses to Requests for Production of Documents, Set One from defendant All American Auto Inc. dba American Auto Credit Inc. ("American Auto" or "defendant.")

On November 18, 2025, Jackson served Requests for Production of Documents, Set One, on American Auto seeking documents relating to American Auto's communications with Jackson and other materials relevant to the claims and defenses in this action. (Chavez Decl., ¶2, Ex. A.) American Auto served responses on January 6, 2026. Those responses consisted largely of 28 boilerplate objections and statements that responsive documents were not within American Auto's possession, custody, or control. (Chavez Decl., ¶3, Ex. B.) However, Defendant's own discovery responses reveal that such documents exist. In its Form Interrogatory responses, American Auto identified text message communications between American Auto's representatives and Jackson, including communications involving Alam Kasam and Usama Yasin. (Chavez Decl., ¶4, Ex. C.)

A motion to compel further must be accompanied by a meet and confer declaration demonstrating an attempt to resolve the matter informally. (Code Civ. Proc., § 2031.310(b).) On January 30, 2026, plaintiff sent a detailed meet-and-confer letter explaining the deficiencies in American Auto's responses and requesting that American Auto serve amended responses and produce responsive documents, including the text message communications referenced in Defendant's interrogatory responses. (Chavez Decl., ¶7, Ex. D.) Plaintiff also attempted to contact defense counsel by telephone and

left voicemail regarding the discovery dispute. (Chavez Decl., ¶18.) American Auto does not dispute it never responded.

In accordance with Fresno Local Rule 2.1.17, Jackson filed a Request for Pretrial Discovery Conference on February 11, 2026. (Chavez Decl., ¶10, Ex. E.) The Court denied the request but authorized the Jackson to file a discovery motion addressing the dispute set forth in the request. (Chavez Decl., ¶11, Ex. F.)

On May 18, 2026, Defendant American Auto served Jackson's counsel, First Amended Responses to Jackson's Request for Production of Documents propounded on American Auto, including 67 pages of exhibits. (Dawood Decl., ¶17., Ex. C)

Accordingly, the motion to compel further responses to Requests for Production of Documents, Set One is moot.

Furthermore, Code of Civil Procedure section 2023.010, subdivision (d), provides that failing to respond to discovery is a misuse of the discovery process. A court may impose a monetary sanction for a misuse of the discovery process. (Code Civ. Proc., §§ 2023.030(a); 2031.310, subd. (h).)

Jackson requests monetary sanctions of \$1,022.50, comprised of attorney's fees and \$60 of filing fees. Here, American Auto failed to provide the additional responses as requested by Jackson.

American Auto argues that sanctions are not warranted for two reasons. American Auto first argues that it acted with good faith where in its January 6, 2026 responses, it "promised to amend their response once the documents are available and found. (All American Auto Inc.'s Response, attached hereto as Exhibit "A")."(Dawood Decl., ¶13.)

However, in addition to the boilerplate objections to American Auto's response, the promise for later production was not very compelling as it did not identify what would later be produced, and did not address Jackson's concerns as American Auto's response was written before the logical inconsistencies pointed out in Jackson's Meet and Confer Letter:

It is anticipated that further discovery, independent investigation, legal research and analysis will supply additional facts and add meaning to known facts, as well as establish entirely new factual conclusions and legal contentions, all of which may lead to substantial additions to, changes in and variations from the contentions herein set forth. The following responses are given without prejudice to Responding Party's right to produce evidence of any subsequently discovered fact or later recalled.

(Dawood Decl., ¶13, Ex. A.)

Second, American Auto further contests that “Plaintiff’s counsel never articulated any specific, substantive deficiencies that remained unresolved.” (American Auto’s Opposition Papers, pg. 5:6-7.) The Court disagrees. Jackson’s January 30, 2026 meet and confer letter, which went unanswered, explicitly explained the deficiencies and incongruities with respect to American Auto’s responses to document production and interrogatories.

Accordingly, plaintiff’s request for monetary sanctions is granted in the amount of \$1,022.50, to be paid by American Auto and its counsel to plaintiff’s counsel at Sierra Litigation. Sanctions shall be paid within 30 days of the notice of entry of this order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By:  **on** 7-20-26 .

(Judge’s initials) (Date)